



NUTRO LIFE SCIENCE INDUSTRIES PVT. LTD.

CUSTOMER PROCESS & POLICY HANDBOOK

“Your Trusted Partner in Sports Nutrition Manufacturing”

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Factory Process Timeline

- **Designing (7–14 Working Days)**

- Logo & label design is created (without final label check).
- Designing and formulation can run side by side.

- **Formulation (7–21 Days)**

- Product formulation is developed.
- Samples are sent by courier OR the customer can visit the factory for faster approval.
- Timeline may increase if customer feedback/updates are delayed.

- **Approval Stage(2-7 Days)**

- Once the formulation is approved, the nutrition table and product details will be added to the label.
- Final label is approved by the client and sent for printing.
- After approval, the designing team will not be responsible for any mistakes or errors found.

- **Printing (2–4 Weeks)**

- Printing time depends on design complexity (e.g., UV Hybrid, special finishes, etc.).

- **Production & Dispatch (14–21 Working Days)**

- As soon as labels/packing material arrive at the factory, production starts.
- Final product is ready and dispatched within 14–21 working days.

Note: Timeline can be reduced for urgent requirements.

Batch Size Guidelines

- **Normal Formulation (Basic, Regular Recipes)**

- Protein: 500 kg (2 flavours)
- Mass Gainer: 1200 kg (2 flavours)
- Pre-Workout, BCAA, EAA, Creatine, Glutamine, etc.: 1000 pcs (2 flavours)
- Multivitamin: 2000 pcs
- Fish Oil: 2000 pcs

- **Unique / Non-Basic Formulation (New or Special Ingredients)**

- Protein: 1000 kg (2 flavours)
- Mass Gainer: 2400 kg (2 flavours)
- Pre-Workout, BCAA, EAA, Creatine, Glutamine, etc.: 2000 pcs (2 flavours)
- Multivitamin: 4000 pcs
- Fish Oil: 5000 pcs

- **Batch Size Variation & Payment Clearance**

- During production, the final batch quantity may vary by $\pm 5\%$ to $\pm 15\%$ due to normal manufacturing process and handling characteristics.
- A variation of $\pm 5\%$ to $\pm 10\%$ shall be considered standard and industry-acceptable range.
- The customer agrees to accept such variation and shall not raise any objection or claim regarding excess or short quantity within this range
- 100% payment clearance is mandatory before dispatch of material, including payment for actual manufactured quantity.

Reason: When a formulation is unique, the R&D, approvals and other costs double, so the minimum batch size also increases.

Payment Services Guide

- **Initial Payment - 51,000**

- Basic Design – A simple design to visualize your product.
- Documentation Help – Support for FSSAI license, trademark check, and agreement signing.
- Sample Preparation – We create 1–2 samples that are 95%–99% similar to the final product.
- Extra ingredients like minerals can be added after an additional 25% payment.

- **Mid-Level Service – 25% Payment**

- Final design and label approval.
- Final mockups for feedback.
- Formula finalized as per your needs.
- Multiple sample rounds (1, 2, or 5) until you're satisfied.

- **Final Stage – 50% Payment**

- Final stickers and labels ready for printing.
- Procurement of ingredients, raw materials, and packaging based on your order.

- **100% Payment – Before Production**

- Full payment collected before manufacturing.
- Production begins after payment.
- Material is dispatched within 2–7 working days after receiving the payment.

Credit Policy & Secured Payment Terms

- The company follows a strict advance payment policy and does not offer credit as a regular practice.
- Credit facility, if granted in exceptional cases, shall be solely at the discretion of the company after internal approval.
- Any credit approval shall be subject to:
 - Proper credit evaluation
 - Market reputation check
 - Financial credibility assessment
 - Internal credit team approval
- Credit shall be allowed only against secured payment instruments, which may include 1–3 security cheques, as decided by the company based on order value.
- Additionally, a cheque against the billed amount must be received by the company prior to dispatch.
- Material shall be dispatched only after receipt of secured cheques. Dispatch shall not be treated as unconditional credit approval.
- No initial credit shall be extended to any new customer. Credit consideration, if any, shall be applicable only after successful business history and internal review.
- The company reserves the right to withdraw or modify credit terms at any time without prior notice.
- **Late Payment & Interest Clause**
 - In case any credit facility is granted, the customer must clear the outstanding amount strictly within the agreed credit period.
 - If payment is not received within the approved credit period, an interest of 1.5% per month shall be charged on the overdue amount, calculated from the due date until full and final payment.
 - Interest shall be payable without any separate notice or reminder.

Credit Policy & Secured Payment Terms

- The company reserves the right to:
 - Stop further supplies
 - Deposit security cheques
 - Initiate recovery proceedings
- Any delay in payment shall automatically cancel further credit privileges.

Advance Payment, Rate Validity & Lapse Policy (Additional Clauses)

• 50% Advance Rate Lock & Validity Clause

If any customer makes 50% advance payment, the quoted rates shall be considered locked for that specific order.

- However, such locked rates shall remain valid only for a maximum period of 60 days from the date of advance payment.
- If the customer fails to initiate production, finalize approvals, or proceed with manufacturing within the said 60-day period
- The previously locked rates shall automatically lapse.
- The order shall be treated as a fresh order, subject to revised prevailing market rates.
- The company shall not be obligated to honor any previous quotation beyond this validity period under any circumstances.

• Mandatory Production Timeline After 50% Payment

- Once 50% advance payment is received, the brand/product must enter active production within 60 days.
- If production does not commence within the said 60-day period, the earlier quoted rates shall automatically lapse, and revised rates shall be applicable.

• Rate Revision Due to Market Conditions

- In case the production is delayed beyond 80 days —whether due to delayed approvals, incomplete inputs, or lack of confirmation from the customer.
- The company reserves the right to revise product pricing, strictly based on prevailing market conditions, especially fluctuations in imported raw materials, whey protein pricing, and import-export market dynamics.

• Customer Non-Responsiveness Clause

- If after receiving 50% advance payment, the customer remains non-responsive or inactive (including delays in approvals, formulation confirmation, packaging finalization, or production consent) for a continuous period of 60 days,
- The company shall not be obligated to honor the previously quoted rates and new applicable rates shall be communicated before further execution.

Advance Payment, Rate Validity & Lapse Policy (Additional Clauses)

- **Small / Token Advance Payment Validity**

- Any advance payment amount such as ₹51,000 or similar token amounts, paid towards project initiation, design, sampling, or partial services.
- Shall remain valid only for 60 days from the date of receipt

- **Advance Lapse & Non-Refund Policy**

- If the customer fails to finalize the brand, formulation, approvals, or production execution within 60 days.
- Such advance amounts shall be deemed lapsed, adjusted against internal costs, and shall not be refundable under any circumstances, if the brand or product is not manufactured.

- **No Liability Post Lapse Period**

- Post lapse of the 60-day validity period, the company shall bear no liability for:
 - Old pricing commitments
 - Reserved production slots
 - Raw material cost variations

Any continuation shall be treated as a fresh order, subject to new pricing, timeline and terms.

- **Sample vs Final Product Variation Clause**

- Samples are prepared in R&D or pilot scale and may have minor variations (taste, color, flowability, solubility) when compared to bulk production.
- Such variations shall be considered industry-acceptable and shall not be grounds for rejection or refund.

- **Deviation Tolerance Clause (FSSAI-Aligned)**

- As per industry and regulatory norms, a 5–10% variation in nutritional values, taste profile or physical parameters is acceptable.
- Results shall be evaluated on a batch basis, and no dispute shall be raised for variations within permissible limits.

Advance Payment, Rate Validity & Lapse Policy (Additional Clauses)

- **Packaging Material Responsibility**

- If packaging material (jars, lids, scoops, pouches, labels) is arranged or approved by the customer.
- The company shall not be responsible for printing errors, material defects, leakage issues or compatibility failures.

- **No Oral Commitments Clause**

- Only written communication (official email or WhatsApp groups created by the company) shall be considered valid.
- Verbal discussions or unofficial assurances shall not be binding on the company.

- **Brand Readiness Clause**

- If the customer fails to finalize branding, approvals, or commercial closure despite repeated follow-ups,
- The project may be closed internally without further obligation, and advances shall be adjusted against incurred costs.

- **Abuse / Pressure Policy**

- Any attempt by the customer to threaten, defame, or exert undue pressure (legal, social media or otherwise).
- Shall result in immediate suspension of the project without refund of advances.

- **Final Authority**

- All decisions related to rate revision, advance adjustment, or project continuation after 60 days shall rest solely with Livo Universal Health Care Pvt. Ltd.(Nutro Life Science), and such decisions shall be final and binding on the customer.

Sample vs Final Batch Refinement & Variation Clause

- The customer acknowledges that samples are developed at an R&D / pilot scale for approval purposes, whereas final production is carried out at a bulk manufacturing scale using industrial processing systems.
- Due to scale-up and process optimization, the final manufactured batch may undergo natural refinement in parameters such as taste, sweetness profile, flavor sharpness, blend uniformity, solubility and overall mouthfeel.
- Such refinement and minor variation between approved sample and final batch (commonly referred to as “19–21 difference”) is a normal and industry-accepted phenomenon and shall not be considered a defect.
- The customer agrees that once the sample is approved, the final batch will be considered acceptable if it falls within standard industry tolerance and maintains the overall approved profile.
- No claim, rejection, or dispute shall be entertained on the basis of such minor refinements or variations.

Designing Clause

(Files Ownership & Access Policy)

- **Design Ownership & File Sharing Policy**

- All label designs, logo concepts, creatives, and related artworks developed by the company are created strictly for end-use (printing & branding purpose only).
- By default, the customer shall be provided with final usable formats (PDF, JPG, PNG, etc.) suitable for printing and approvals

- **CDR / Source File Policy:**

- In case the customer requests editable/source files (e.g., CDR, AI, PSD, etc.):
- The company shall provide only locked / non-editable (secured) CDR files for label usage.
- Open / editable source files shall not be shared by default.

- **Editable File Access (Paid Clause):**

- If the customer specifically requires open/editable (unlocked) files,
- The same may be provided at an additional charge of approximately ₹10,000/-per label/design
- Subject to internal approval and payment clearance.

- **Printing & Design Usage Protection Clause**

- **Design Control & Printing Rights Clause**

- All designs developed by the company are optimized for in-house or approved vendor printing standards.
- The company shall not be responsible for any quality issues, color variations, or output differences if printing is done externally using shared files.

- **File Security Clause:**

- The company reserves the right to:
Share only secured / locked design files.
- Restrict access to open/editable formats unless additional charges are paid.

- **Unauthorized Modification Disclaimer:**

- Any modification, tampering, or redesign done outside the company using shared files shall be at the sole risk and responsibility of the customer.

Mandatory FSSAI License Requirement (Brand Owner Policy)

- **Compulsory FSSAI Relabeller / Brand Owner License**

- Any customer intending to manufacture products under their own brand name is mandatorily required to possess a valid FSSAI Relabeller / Brand Owner License.
- This requirement is non-negotiable and strictly as per FSSAI regulations.

- **Other Licenses Not Acceptable as Substitutes**

- Licenses such as:
 - Trade License
 - Wholesale License
 - Shop Act Registration
 - GST Registration
 - Any Other Business Registration

✗ Shall NOT be considered valid for brand ownership or food manufacturing under FSSAI norms.

- Only a valid FSSAI Brand Owner / Relabeller License shall be acceptable.

- **Manufacturing Without Brand Owner License**

- In the absence of a valid FSSAI Relabeller / Brand Owner License from the customer.
- The final product shall be manufactured as “Unbranded / Unmarked”.
 - In such cases:
 - The product shall be manufactured and dispatched under the manufacturer’s compliance structure only.
 - No brand name shall be printed, claimed, or marketed by the customer.

- **No Responsibility for License Non-Availability**

- The responsibility to obtain and maintain a valid FSSAI license lies solely with the customer.
- The company shall not be held responsible for:
 - License rejection
 - Delays in issuance
 - Incomplete documentation
 - Expiry or suspension of the license

Mandatory FSSAI License Requirement (Brand Owner Policy)

- **No Production Hold or Refund Due to License Issues**

- Any delay or inability to proceed with branded production due to non-availability of FSSAI license.
- Shall not be considered a fault of the company.
- Advances paid shall remain non-refundable, and pricing validity shall be governed by the 60 day policy.

- **Label Printing & Compliance Restriction**

- Label printing with a brand name, logo, or nutritional claims shall commence only after submission and verification of:
 - Valid FSSAI Relabeller / Brand Owner License
 - Correct license number and address
- Any compliance rejection due to incorrect or missing license details shall be the customer's liability.

- **Final Authority – FSSAI Norm Supremacy**

- All manufacturing, labeling, packaging, and dispatch shall be carried out strictly in accordance with FSSAI rules and guidelines.
- In case of conflict between customer instructions and FSSAI norms, FSSAI regulations shall prevail.

- **Simple Explanation (For Customer Understanding – Optional Annexure)**

As per FSSAI regulations, any person selling food products under their own brand name is classified as a Brand Owner / Relabeller and must hold a valid FSSAI license.

Business registrations like Trade License, GST, or Wholesale License do not authorize brand ownership in food products.

Without a valid FSSAI Brand Owner license, food can only be manufactured and supplied as unbranded.

Sampling Policy

- **Free Sampling Limit**

The company will provide up to 2–3 servings per variant free of cost for product sampling.

- **Paid Sampling Beyond Limit**

If the customer requires more than 2–3 servings per variant, such additional samples will be provided strictly on a paid basis.

- **Large Sample Requests & Courier Charges**

In case the customer requests large-size samples, the shipping/courier cost for sending such samples shall also be charged to the customer.

- **Option for On-Site Sampling**

To avoid additional sample and courier costs, the customer has the option to personally visit our office/facility, where samples can be prepared in front of them and provided free of cost.

- **Rationale for the Policy**

This policy is necessary because repeated or large-volume sampling incurs significant cost for the company, and initially, such costs cannot be absorbed by us.

Client Onboarding & Workflow Structure

Dear Client,

Once your advance / token payment is received, we initiate your project by creating two dedicated groups for smooth coordination:

- **Production Group**

- Covers all matters related to finance, payments, formulation, performance invoices, purchase orders, and tracking.
- The Finance Team will also be included in this group.

- **Designing Group**

- Dedicated exclusively to label, packaging, and creative design discussions.
- All design-related approvals and communication will happen here.

- **Account Manager Support**

- A dedicated Account Manager will be part of both groups.
- He/She will ensure timely updates, faster execution, and smooth communication.
- Their role is to simplify your work and resolve any issues that arise

- **Director-Level Oversight**

- Both groups will also remain under the supervision of our Directors – Mr. Tanishq Dhingra & Ms. Tejasvi Dhingra.
- If at any stage you feel your concerns are not being addressed properly, you may directly reach out to the Directors for resolution and support.

- **Important Policy on Design Approval**

- Once a design is finalized and approved by you, it will be considered your final confirmation.
- After your approval, if the design proceeds to printing, any later changes, errors, or complaints regarding the same will remain under your liability, since approval was given from your side before printing.

- **This structure ensures clear communication, faster execution, transparency and accountability at every step of your project.**

Payment Terms & Rate Validity

- The rates mentioned in the Proforma Invoice (PI) shall remain valid for 7 days from the date of issuance.
- Project initiation can begin with an advance payment of ₹51,000, however, this amount does not secure or lock the quoted rates.
- To lock and confirm the quoted rates, a minimum of 50% advance payment of the total order value must be received within 15 days of the PI date.
- In the absence of the 50% advance within the validity period, the rates are subject to market fluctuations, especially due to the volatile pricing of whey protein and other imported ingredients.
- The initial quoted rates shall be applicable only after receipt of the 50% advance payment.

GST & Freight Policy

- All rates quoted are **without GST**.
- All rates quoted are **without Freight**.
- GST and Freight will be **extra and payable by the customer**.

Shelf Life, Expiry & Replacement Policy

- All products are manufactured with a declared shelf life of 18 months from the date of manufacturing, under recommended storage conditions.
- The company does not accept any return, debit note, refund, or buy-back of products after expiry (post 18 months)..
- Once the product has completed its declared shelf life, the company shall bear no responsibility or liability for quality, performance, or market claims.
- During the valid shelf life (within 18 months), if any genuine manufacturing defect is observed (such as spoilage, unusual bitterness, infestation, contamination, or abnormal deterioration), the company may provide replacement only after internal quality testing and verification.
- No claim shall be accepted without:
 - Batch details
 - Proper storage proof
 - Retained sample verification
 - Internal quality approval from the company
- Replacement, if approved, shall be limited to the affected batch quantity only and shall not include any indirect, market, or consequential losses.